

21CHCV00606 21CHCV00606

County: los-angeles

Division: Civil Law and Motion

Department: F47

Hearing date: 2026-09-24

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Case Number: 21CHCV00606 Hearing Date: September 24, 2026 Dept: F47

Dept. F47

Date: 9/24/26

Case #21CHCV00606

MOTION FOR
ATTORNEYS' FEES

Motion filed on 5/15/26.

MOVING PARTY: Plaintiff Rexford Industrial Realty, L.P.

RESPONDING PARTY: Stephen Mastey

RELIEF REQUESTED: An order awarding Plaintiff
Rexford Industrial Realty, L.P. attorneys' fees in the amount of \$11,284.50
against Defendant Stephen Mastey.

RULING: The
motion is placed off calendar.

On 5/5/26, a hearing on application for appearance and
examination of Defendant/Judgment Debtor Stephen Mastey (Defendant) was
held. (See 5/5/26 Minute
Order). After examination took place in
the conference room, Judgment Creditor/Plaintiff Rexford Industrial Realty,
L.P. (Plaintiff) represented to the Court that Defendant had not provided the

requested documents in violation of the Court's previous orders. Id.

The Court also set an Order to Show Cause Re: Defendant's Contempt of Court for 9/24/26 and ordered Plaintiff to submit a Proposed Order to Show Cause for the Court's consideration. Id. On 5/5/26, Plaintiff submitted a proposed Order Re Setting Order to Show Cause Re Contempt Against Mastey.

On 5/15/26, Plaintiff filed the instant motion seeking an order awarding Plaintiff attorneys' fees in the amount of \$11,284.50 against Defendant pursuant to CCP 1218. The motion was originally scheduled for hearing on 10/13/26 but was rescheduled for hearing on 9/24/26. (See Notice of Rescheduled Hearing Re Plaintiff's Motion for Attorneys' Fees).

On 6/30/26, the Court issued a Minute Order denying, without prejudice, Plaintiff's request for the issuance of an Order to Show Cause Re Contempt Against Mastey. (See 6/30/26 Minute Order).

The Motion for Attorney's Fees is tied to Defendant's purported contempt. (See Notice of Motion, p.2:2-3 citation to CCP 1218; Memorandum, p.1:11-15, p.4:19-p.12:15). After the issuance of the Court's 6/30/26 Minute Order, which found that the contempt was indirect, rather than direct as argued in the motion, Plaintiff made no request to have the Court reconsider its 6/30/26 order.

Even if the Motion for Attorneys' Fees was properly before the Court based on Defendant's purported contempt, it was not properly served. eCourt still indicates that Defendant is represented by attorney Nnana Awa of the law firm Law Angeles APC. The proof of service attached to the motion indicates that the motion was served by mail and electronic transmission solely on Stephen Mastey at 29232 Las Brisas Road, Valencia, CA 91355 and stephenmastey@gmail.com. There is no evidence that attorney Awa was served with the motion.

Even if Defendant is deemed to now be representing himself based on his appearances without counsel and the 8/20/24 filing of a declaration by Defendant which indicates he was then representing himself, the motion was not mailed to the street address or email address listed on that declaration. The 8/20/24 declaration

filed by Defendant lists his address as: 24844 Anza Drive, Unit D, Valencia, CA 91355 and his email address as: Stephen@Mastey.com.

Further, the proof of service filed on 12/15/25 which indicates Defendant was personally served with an Order to Appear for Examination; Notice of Rescheduled Hearing on 12/11/25 lists the street address as: "292632 Las Brisas Rd., Santa Clarita, CA 91354." However, the motion and Notice of Rescheduled Hearing on the motion were mailed to "29232 Las Brisas Rd., Valencia, CA 91355" (different street number, city and zip code) and emailed to stephenmastey@gmail.com (different email address).

Defendant has not responded to the motion for attorneys' fees or any contempt proceedings to cure the defect in notice.

Therefore, the motion for attorneys' fees and the Order to Show Re Contempt are placed off calendar.